

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED

SENATE BILL NO. 419

By: Daniels and Bullard of the
Senate

and

Lepak of the House

COMMITTEE SUBSTITUTE

An Act relating to the Attorney General; amending 74 O.S. 2021, Section 18c, as amended by Section 5, Chapter 199, O.S.L. 2025 (74 O.S. Supp. 2025, Section 18c), which relates to employment of attorneys; authorizing certain entities to employ or appoint attorneys; updating statutory language; updating statutory references; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 74 O.S. 2021, Section 18c, as amended by Section 5, Chapter 199, O.S.L. 2025 (74 O.S. Supp. 2025, Section 18c), is amended to read as follows:

Section 18c. A. 1. Except as otherwise provided by this subsection, no state officer, board or commission shall have authority to employ or appoint attorneys to advise or represent ~~said~~ the officer, board or commission in any matter.

1 2. The provisions of this subsection shall not apply to the
2 Corporation Commission, the Council on Law Enforcement Education and
3 Training, the Commission on Consumer Credit Commission, the Board of
4 Managers of the State Insurance Fund, the Oklahoma Tax Commission,
5 the State Treasurer, the Commissioners of the Land Office, the
6 Oklahoma Public Welfare Commission also known as the Commission for
7 Human Services, the State Board of Corrections, the Oklahoma Health
8 Care Authority, the Department of Public Safety, the Oklahoma State
9 Bureau of Narcotics and Dangerous Drugs Control, the Alcoholic
10 Beverage Laws Enforcement Commission, the Transportation Commission,
11 the Oklahoma Energy Resources Board, ~~the Oklahoma Merit Protection~~
12 ~~Commission~~, the Office of Management and Enterprise Services, the
13 Oklahoma Water Resources Board, the Department of Labor, the
14 Oklahoma Department of Agriculture, Food, and Forestry, the
15 Department of Wildlife Conservation, the Oklahoma Wildlife
16 Conservation Commission, the Northeast Oklahoma Public Facilities
17 Authority, the Oklahoma Firefighters Pension and Retirement System,
18 the Oklahoma Public Employees Retirement System, the Uniform
19 Retirement System for Justices and Judges, the Oklahoma Conservation
20 Commission, the Office of Juvenile Affairs, the State Board of
21 Pharmacy and the Oklahoma Department of Veterans Affairs.

22 3. The provisions of paragraph 2 of this subsection shall not
23 be construed to authorize the Office of Juvenile Affairs to employ
24 any attorneys that are not specifically authorized by law.

1 4. All the legal duties of such officer, board or commission
2 shall devolve upon and are hereby vested in the Attorney General;
3 provided that:

4 a. the Governor shall have authority to employ special
5 counsel to protect the rights or interest of the state
6 as provided in Section 6 of this title, and

7 b. liquidation agents of banks shall have the authority
8 to employ local counsel, with the consent of the Bank
9 Commissioner and the Attorney General and the approval
10 of the district court.

11 B. At the request of any state officer, board or commission,
12 except the Corporation Commission, ~~the~~ Oklahoma Tax Commission and
13 the Commissioners of the Land Office, the Grand River Dam Authority,
14 the Oklahoma State Bureau of Narcotics and Dangerous Drugs Control,
15 the Alcoholic Beverage Laws Enforcement Commission, the Oklahoma
16 Firefighters Pension and Retirement System, the Oklahoma Public
17 Employees Retirement System, the Uniform Retirement System for
18 Justices and Judges and the Interstate Oil and Gas Compact
19 Commission, the Attorney General shall defend any action in which
20 they may be sued in their official capacity. At the request of any
21 such state officer, board or commission, the Attorney General shall
22 have authority to institute suits in the name of the State of
23 Oklahoma on their relation, if after investigation the Attorney
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1 General is convinced there is sufficient legal merit to justify the
2 action.

3 C. Any officer, board or commission which has the authority to
4 employ or appoint attorneys may request that the Attorney General
5 defend any action arising pursuant to the provisions of The
6 Governmental Tort Claims Act.

7 ~~C.~~ D. Nothing in this section shall be construed to repeal or
8 affect the provisions of the statutes of this state pertaining to
9 attorneys and legal advisors of the several commissions and
10 departments of state specified in subsection B of this section, and
11 all acts and parts of acts pertaining thereto shall be and remain in
12 full force and effect.

13 SECTION 2. This act shall become effective November 1, 2026.

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